

Week 2 – Case Law (cont'd) Intro to Professional Responsibility; Statutes, Citation



INTRODUCTORY LAWYERING
SKILLS

TODAY'S PLAN

- Review *Kapahi Real Estate Inc v Elite real estate Club of Toronto* and the use of AI
- Review the Anatomy of a Statute
- Introduce Principles of Statutory Interpretation
- Introduce Citation of Statutes and Cases

WHAT WAS THE PROBLEM IN *KAPAHI REAL ESTATE INC?*

- What did the respondent say had happened?
- What was the court's view of the explanation?
- What did the court do in response?

What might the LSO be concerned about?

LSO Rules Relevant to Generative AI Use

Based on the LSO practice resource, Generative AI: [Your Professional Obligations \(April 10, 2024\)](#)

Duty	Rules of Professional Conduct	What it means for AI use
Competence	Section 3.1	Understand an AI tool's capabilities and limitations before relying on it; independently verify any AI-generated output.
Confidentiality	Section 3.3	Don't input confidential or privileged client information into an AI tool unless it's adequately safeguarded or the client has consented.
Honesty and Candour	Rule 3.2-2	Tell clients when AI use may affect the outcome, cost, or risk profile of their matter.
Supervision	Sections 6.1 and 6.2	Treat AI output like work from a non-licensee employee — delegate deliberately and validate what it produces.
Reasonable Fees and Disbursements	Section 3.6	AI-related costs passed on to clients must be fair, disclosed in advance, and billed at actual (not estimated) cost.
Not Misleading the Tribunal	Section 5.1	Independently verify AI-generated case law, citations, and evidence before filing — hallucinated authorities are a live risk.

Where does AI fit in your skills development?

- What are the concerns raised in the AI Trap article excerpt assigned for today?
 - How does cognitive science and psychology research suggest expertise is developed?
 - What is the Competence Illusion and what gap does it create?
 - Where does the Gap become apparent?
- Question to ask if considering AI: Could I do this task competently if AI were unavailable right now? If the answer is no, there is a skill gap.

Key Concepts and Analytical Approaches in Statutory Interpretation

EXPLORING PRINCIPLES AND FRAMEWORKS FOR LEGAL
ANALYSIS

Legislation Basics!

1. Which branch of government passes statutes?
2. What is the key difference in process between passage of a *provincial bill* and a *federal bill*?
3. What is the difference between a *bill* and a *statute*?
4. Where can you find [information about the status of a federal bill?](#)
 - For Ontario Bills, see the [Ontario Legislative Assembly site.](#)



FOUNDATIONS OF STATUTORY INTERPRETATION



Why are we doing this?



- Goal: To determine the intention of the legislature.
- Why it Matters: Resolves doubts, conflicts, or confusion in applying legislation to facts.
- What it involves: Law includes rules (binding), principles (not binding), values, assumptions, and practices. ... this involves considering various factors ...



The Modern Principle of Statutory Interpretation

Driedger's Formulation

Driedger's principle emphasizes interpreting legal texts in their full context and ordinary meaning.



Harmonious Interpretation

The interpretation must align with the Act's scheme, object, and Parliament's intention.

Supreme Court Adoption

The Supreme Court of Canada adopted Driedger's principle in the ***Rizzo & Rizzo Shoes*** case.. See *Peters* at para 103.



Preliminary Analysis – Key Components

- Comprehensive Exploration: Interpreters must explore all aspects of interpretation before choosing arguments.
- Identify Sources of Doubt: Pinpoint where confusion arises in applying legislation.
-  Ascertain Purpose and Scheme: Understand legislative goals and implementation plans.
- Assess Contextual Factors: Determine relevance and support for outcomes.
- Types of Analysis: Textual, Purposive, Scheme, Policy, and Consequential.

1. Internal Sources - Interpretation rules in individual statutes and regulations
2. “External” Sources:
 - a. Interpretation Acts
 - b. Common Law

Sources of Interpretation

Preamble

Whereas recognition of the inherent dignity and the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world and is in accord with the Universal Declaration of Human Rights as proclaimed by the United Nations;
And Whereas it is public policy in Ontario to recognize the dignity and worth of every person and to provide for equal rights and opportunities without discrimination that is contrary to law, and having as its aim the creation of a climate of understanding and mutual respect for the dignity and worth of each person so that each person feels a part of the community and able to contribute fully to the development and well-being of the community and the Province;
And Whereas these principles have been confirmed in Ontario by a number of enactments of the Legislature and it is desirable to revise and extend the protection of human rights in Ontario;
Therefore, Her Majesty, by and with the advice and consent of the Legislative Assembly of the Province of Ontario, enacts as follows:

Preamble: *Human Rights Code*
(Ontario)

Purpose of Act

2 The purpose of this Act is to extend the laws in Canada to give effect, within the purview of matters coming within the legislative authority of Parliament, to the principle that all individuals should have an opportunity equal with other individuals to make for themselves the lives that they are able and wish to have and to have their needs accommodated, consistent with their duties and obligations as members of society, without being hindered in or prevented from doing so by discriminatory practices based on race, national or ethnic origin, colour, religion, age, sex, sexual orientation, gender identity or expression, marital status, family status, genetic characteristics, disability or conviction for an offence for which a pardon has been granted or in respect of which a record suspension has been ordered.



Purpose: *Canadian Human Rights Act*

For a statute containing both a Preamble and a Purpose Section, see Ontario's [Child, Youth and Family Services Act](#).

PART II INTERPRETATION AND APPLICATION

Source: *Human Rights Code (Ontario)*

Definitions re: Parts I and II

10 (1) In Part I and in this Part,

“age” means an age that is 18 years or more; (“âge”)

“disability” means,

- (a) any degree of physical disability, infirmity, malformation or disfigurement that is caused by bodily injury, birth defect or illness and, without limiting the generality of the foregoing, includes diabetes mellitus, epilepsy, a brain injury, any degree of paralysis, amputation, lack of physical co-ordination, blindness or visual impediment, deafness or hearing impediment, muteness or speech impediment, or physical reliance on a guide dog or other animal or on a wheelchair or other remedial appliance or device,
- (b) a condition of mental impairment or a developmental disability,
- (c) a learning disability, or a dysfunction in one or more of the processes involved in understanding or using symbols or spoken language,
- (d) a mental disorder, or
- (e) an injury or disability for which benefits were claimed or received under the insurance plan established under the *Workplace Safety and Insurance Act, 1997*; (“handicap”)



“equal” means subject to all requirements, qualifications and considerations that are not a prohibited ground of discrimination; (“égal”)

“family status” means the status of being in a parent and child relationship; (“état familial”)

Definitions/Interpretation

Application of this Act

190 Every application, proceeding or matter under the former Act that is pending or in progress immediately before the coming into force of this section shall be governed by this Act on that coming into force.



[Note: Section 190 in force June 28, 2002, see SI/2002-97.]

Commencement and
Transition

Immigration and Refuge Protection Act

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Zoom Recording – press the arrow to play



Go to
e-laws

Visit www.e-laws.gov.on.ca

interpretive questions!

- How many definitions of spouse can you find under the *Family Law Act*, RSO 1990, c F.3?
- How many definition sections did you need to consult?



64.

64(1) Rule of liberal interpretation

An Act shall be interpreted as being remedial and shall be given such fair, large and liberal interpretation as best ensures the attainment of its objects.

Ontario legislation calls for liberal interpretation.

Note:



Every jurisdiction in Canada has its own Interpretation Act containing rules applicable to statutes in general

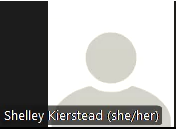
Legislation Act SO 2006, c 21, Sched F

2a. External Sources –
Interpretation Acts

Legislation Act – Questions

- Scroll the Contents of the *Legislation Act*. What does it tell us about “the commencement of a statute” absent anything else being stated in the statute about its coming into force?
- Can a preamble be used to explain the purpose of an Act?

Zoom Recording – Press Play



Traditional Rules of Statutory Interpretation

- Three main approaches recognized historically:
 - **Literal (Plain Meaning) Rule:** Interpret legislation based on accepted grammar and common understanding, now considering broader purpose.
 - **Golden Rule:** Modify plain meaning if a literal interpretation leads to an "absurd" result, assuming Parliament does not intend absurdity.
 - **Mischief (Heydon's Case) Rule:** Examine the state of the law before the legislation and the purpose in creating it, to correct the "mischief".
- **Modern Approach:** These rules are now largely encompassed by the Modern Principle, but still inform judicial reasoning.



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Maxims of interpretation



Noscitur a Sociis

Meaning of a word is influenced by its associated words within the same context.

Ejusdem Generis

General terms following specific ones are interpreted to refer to a narrower related class.



Expressio Unius Est Exclusio Alterius

Omission of items from a list implies intentional exclusion of those items by legislature.

Overarching Rule

Maxims aid interpretation but do not override legislative intent as primary goal.

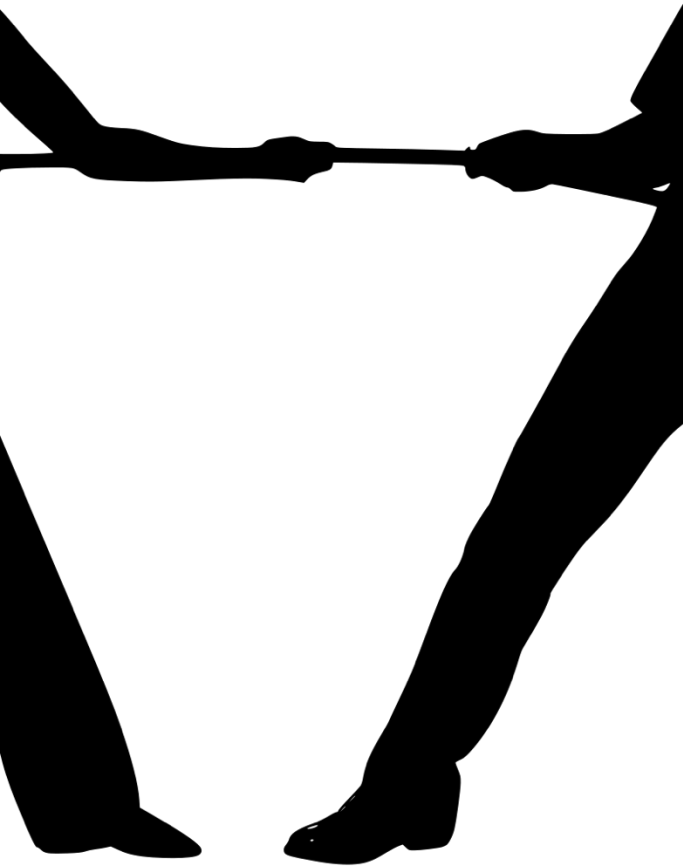
Bilingual Legislation

- Federal legislation and some provincial/territorial legislation are drafted in both English and French.
- Equal Authority: Both language versions are official and equally authoritative.

Resolving Discrepancies:

- Identify a common/shared meaning between both versions, if consistent with legislative intent.
- If one version is ambiguous and the other unequivocal, the unequivocal meaning is preferred.





Models of statutory argument: disputed meaning, non-application, paramountcy, exhaustive code

Disputed Meaning Model

This model focuses on resolving ambiguity in specific words or phrases within legislative text.

Non-application Model

Argues to exclude a provision despite its ordinary meaning to avoid absurd results or to fulfill legislative purpose.

Paramountcy Model

Addresses conflicts between legal rules where one rule must take precedence over others.

Exhaustive Code Model

Posits that a legal scheme is intended to apply exclusively, excluding other rules on the matter.

Supplementation, gap-filling, and correcting mistakes

Filling Legislative Gaps

Courts cannot fill gaps where legislative purpose is clear but means are inadequate.

Supplementation by Common Law

Common law supplements under-inclusive legislation, especially within court jurisdiction.

Correcting Drafting Mistakes

Courts may correct drafting errors to reflect the legislature's clear intent.



LET'S START TO LOOK AT
CITATION



Why do we Cite Sources?

What information?

Legislation

(McGill Guide – E-2)

- Title
- Jurisdiction
- Year
- Location Info

Jurisprudence (Cases)

(McGill Guide – E-3)

- Style of Cause
- Year
- Jurisdiction
- Court Level
- Location Info

Secondary Sources

(McGill Guide – E-6)

- Title
- Author
- Year
- Location Info

Legislation

Federal Legislation

Example 1



Pension Act, RSC 1985, c P-6.

Title	Jurisdiction & Year	Location information
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Legislation

Federal Legislation

Example 2

Kindness Week Act, SC 2021, c 9.

Title Jurisdiction & Year Location information

Legislation

Provincial Legislation

Example 1

Solicitors Act, RSO 1990, c S.15.

Title	Jurisdiction & Year	Location information
<i>Solicitors Act</i>	RSO 1990	c S.15.

Legislation –
Another
Example

Provincial Legislation

Christmas Tree Day Act, 2015, SO 2015, c 12.



Title

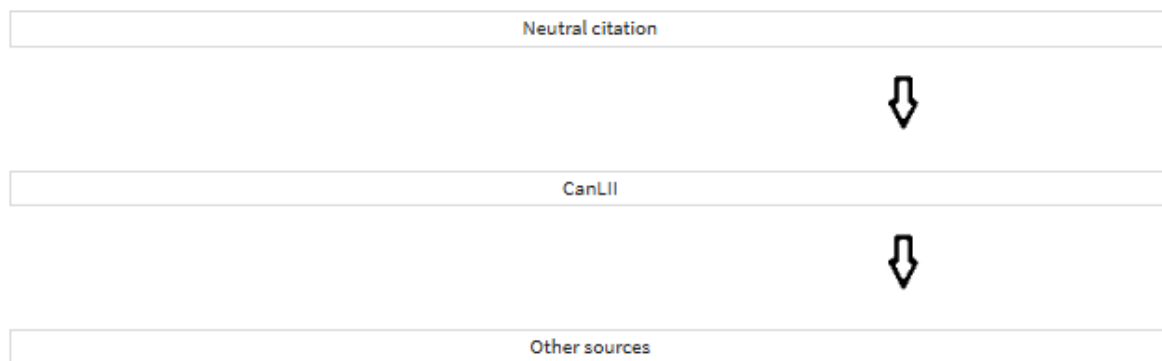


Jurisdiction
and year



Location
information

Hierarchy of sources:



Where available, the neutral citation should always be the main citation. Where a neutral citation is unavailable, provide the **Canadian Legal Information Institute (CanLII)** citation.

A parallel citation is generally unnecessary where a neutral citation or CanLII citation is available.

Example

Yared v Karam, 2019 SCC 62.

Francis v Ontario, 2021 ONCA 197.

Bank of Montreal v Duguid, 2000 CanLII 5710 (ONCA).

Providing the reader with at least two sources (main citation and parallel citation) is strongly recommended in absence of either a neutral or CanLII citation to ensure reader accessibility. Where paragraph numbers or page numbers are not available for an online source (including CanLII), a different source with paragraph or page numbers should be used as the main citation. The main citation is always used to cite pinpoint references (see e.g., *Tremblay*).

If neither a neutral citation nor a CanLII citation are available, provide **other sources**. Other sources comprise of **online databases** (e.g. **Carswell**, **SOQUIJ**), **official reporters** (SCR, FCR, Ex CR), and **unofficial reporters** (e.g. DLR, RJQ). Where one of these other sources is used, provide a parallel citation.

Case Law

How do we interpret and convert to *McGill Guide* format?

Childs v. Desormeaux

2006 CarswellOnt 2710; 2006 CarswellOnt 2711; 2006 SCC 18; [2006] 1 S.C.R. 643; [2006] R.R.A. 245; [2006] S.C.J. No. 18; 147 A.C.W.S. (3d) 719; 210 O.A.C. 315; 266 D.L.R. (4th) 257; 30 M.V.R. (5th) 1; 347 N.R. 328; 39 C.C.L.T. (3d) 163; 80 O.R. (3d) 558

<https://guides.library.queensu.ca/legalcitation-mcgill-10th>

Next Week ...

- Be sure you have read the statutory interpretation materials from this week along with (posted) *Wilk v Arbour* and (skim) *Nigro v Luciano* to prepare for tutorial
- Lecture materials (including *Nigro v Luciano*) are according to schedule. We will fold in the *Al Trap* and *Kapahi* case from this week.